

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 79

COMPAGNIE D'ÉLECTRICITÉ
DE SOFIA ET DE BULGARIE

(MESURES CONSERVATOIRES)

ORDONNANCE DU 5 DÉCEMBRE 1939

1939

ORDER OF DECEMBER 5th, 1939

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 79

THE ELECTRICITY COMPANY
OF SOFIA AND BULGARIA

(INTERIM MEASURES OF PROTECTION)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF



LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

Order made on December 5th, 1939.

1939.
December 5th.
General List :
No. 75.

JUDICIAL YEAR 1939.

[*Translation.*]

THE ELECTRICITY COMPANY
OF SOFIA AND BULGARIA

(REQUEST FOR THE INDICATION
OF INTERIM MEASURES OF PROTECTION.)

Present : M. GUERRERO, *President* ; Sir CECIL HURST, *Vice-President* ; MM. FROMAGEOT, ANZILOTTI, NEGULESCO, Jhr. VAN EYSINGA, MM. CHENG, DE VISSCHER, ERICH, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

Having regard to Articles 41 and 48 of the Statute of the Court,
Having regard to Article 61 of the Rules of Court,

Makes the following Order :

Having regard to the Application filed with the Registry of the Court on January 26th, 1938, whereby the Belgian Government instituted before the Court proceedings against the Bulgarian Government with regard to the Electricity Company of Sofia and Bulgaria ;

Having regard to the appointment by the two Governments concerned of their respective Agents, namely : for the Belgian Government, M. J. G. de Ruelle, and, for the Bulgarian Government, M. Ivan Altinoff ;

Having regard to the nomination by the Bulgarian Government—which, having no judge of its nationality in the Court,

availed itself of its right under Article 31 of the Statute—of M. Théohar Papazoff to sit in the case ;

Having regard to the Memorial filed by the Belgian Government on August 27th, 1938 ;

Having regard to the request for the indication of interim measures of protection filed with the Registry of the Court on July 4th, 1938, by the Belgian Government, and to the telegrams sent by the Agent for the Bulgarian Government to the President of the Court on July 27th, 1938, and the letter of the Agent for the Belgian Government to the Registrar of the Court, dated August 26th, 1938 ;

Having regard to the Order made by the President of the Court on August 27th, 1938, whereby, in view of the above-mentioned communications, the withdrawal by the Belgian Government of the said request for the indication of interim measures of protection was placed on record ;

Having regard to the preliminary objection raised by the Bulgarian Government on November 25th, 1938 ;

Having regard to the Judgment of April 4th, 1939, in which the Court adjudicated upon this objection ;

Having regard to the Order of the same date, whereby the Court fixed July 4th, August 19th and October 4th, 1939, as the dates of expiration of the time-limits for the filing of the Counter-Memorial, Reply and Rejoinder on the merits ;

Having regard to the Counter-Memorial of the Bulgarian Government and the Reply of the Belgian Government, which were filed by the prescribed dates ;

Having regard to the Order, dated October 4th, 1939, whereby, in view of a telegram from the Agent for the Bulgarian Government dated October 2nd, 1939, the time-limit for the filing of the Bulgarian Rejoinder was extended until January 4th, 1940 ;

Whereas, on October 17th, 1939, the Agent for the Belgian Government filed with the Registry of the Court a new document, dated October 14th, 1939, and entitled "Second incidental Request of the Belgian Government for the indication of interim measures of protection", which runs as follows :

"In the action brought by the State of Belgium against the State of Bulgaria (case concerning the Electricity Company of Sofia and Bulgaria),

Having regard to the Application instituting proceedings, filed with the Registry by the Applicant on January 26th, 1938,

Having regard to Articles 41 and 48 of the Court's Statute and Article 61 of its Rules,

Having regard to the request for the indication of interim measures of protection, dated July 2nd, and filed in the Registry of the Court on July 4th, 1938,

Having regard to the letter addressed to the Registrar of the Court by the undersigned on August 26th, 1938,

Having regard to the Order made by the Court on August 27th, 1938, placing on record the withdrawal by the Belgian Government of the above request for the indication of interim measures of protection,

Having regard to the Court's Judgment of April 4th, 1939, on the objection to the jurisdiction raised by the Respondent,

Whereas it appears from the aforementioned communication addressed by the undersigned to the Registrar of the Court on August 26th, that the Belgian Government only withdrew its request for the indication of interim measures of protection subject to reservations and relying on a declaration of the Bulgarian Government to the effect that, having regard to the purely declaratory nature of the Bulgarian judicial decisions of which the Municipality of Sofia claimed the execution, the non-payment by the Electricity Company of Sofia and Bulgaria could not lead to the application of any measure of compulsion against the Company; for, it was added, to obtain the payment desired, the Municipality must bring an action as demandant before the Bulgarian courts, and this action would, if need be, be heard successively by the three usual courts of the Bulgarian judicial hierarchy; the claim based on the "declaratory" decisions was for 70,745,610 leva;

Whereas, on August 1st, 1939, the Municipality of Sofia, which had been substituted for all the consumers of current by the decree law of April 13th, 1938 (No. 62 of the Annexes to the Belgian Memorial), brought against the said Company a petitory action based on the previous decisions of the Bulgarian courts, as appears from the attached certificate;

Whereas the sum claimed has however been raised from 70,745,610 leva to 82,360,577 leva;

Whereas the measures of execution with which the Belgian Company is threatened are such as would not only seriously prejudice the Company's position but also impede the restoration of its rights by the Municipality, if the Court were to uphold the Belgian Government's claim;

Whereas the undersigned vainly endeavoured to induce the Bulgarian Agent to intervene with a view to the suspension of the new proceedings now pending;

And whereas the Bulgarian Government, having regard to the international situation, has asked the Court for an extension of the time granted for the filing of its Counter-Memorial, and there is thus reason to fear that a decision on the merits will not be given before the order for execution applied for by the Municipality of Sofia,

For these reasons,

The undersigned Agent for the Belgian Government prays the Court, in the exercise of the powers conferred on it by Articles 41 and 48 of the Statute and Article 61 of the Rules of Court, to indicate as an interim measure of protection that the new proceedings in the Bulgarian courts shall be suspended until the Permanent Court of International Justice has delivered judgment on the merits";

Whereas this request was notified on October 18th, 1939, to the Agent for the Bulgarian Government who was at the same time asked to let the Registry of the Court have before November 24th, 1939, any observations in writing which he might have to make upon the request of the Belgian Government for the indication of interim measures of protection ;

Whereas by a telegram dated November 18th, 1939, the Agent for the Bulgarian Government, on the instructions of his Government, informed the Court that, owing to the war, the Agent for the Bulgarian Government found it impossible to collaborate with foreign Counsel in the preparation of the Bulgarian defence, that, owing to the necessity of traversing belligerent countries to reach The Hague, which involved serious risks to personal safety, the Bulgarian Government forbade the departure of the national judge nominated by it and of its agent and that, in view of these circumstances of *force majeure*, the Bulgarian Government did not consider it incumbent upon it to submit the observations asked for, though it declared that many reasons existed for the rejection of the Belgian request for the indication of interim measures of protection ;

Whereas, on November 24th, 1939, the President of the Court, in accordance with Article 61, paragraph 8, of the Rules of Court, fixed December 4th, 1939, for a public sitting for the hearing of the observations of the Parties upon the request for the indication of interim measures of protection ;

Whereas the judge nominated by the Bulgarian Government, having been duly summoned to attend the public sitting thus fixed, announced in a telegram dated November 25th, 1939, that it was impossible for him, owing to circumstances of *force majeure*, to come to The Hague ;

Whereas, by telegrams dated November 24th, 1939, the Agents of the two Parties were duly informed of the fixing of the public sitting for December 4th, 1939 ; but whereas, in view of the above-quoted telegram dated November 18th, 1939, from the Agent for the Bulgarian Government, only the Agent for the Belgian Government appeared before the Court on the date fixed ;

Whereas the Bulgarian Government was not therefore represented before the Court at the public sitting held on December 4th, 1939 ;

Whereas at this sitting, the Court heard M. J. G. de Ruelle, Agent for the Belgian Government, and Maître Henri Rolin, Counsel ; and whereas the request presented in the document dated October 14th, 1939, was not amended in the course of the hearing ;

Whereas on September 8th, 1939, the Regional Court of Sofia delivered the following certificate produced by the Belgian Government as an annex to its request of October 14th, 1939 :

“CERTIFICATE.—The Regional Court of Sofia, Second Civil Section, delivers the present certificate to the Electricity Company of Sofia and Bulgaria, certifying that by means of an application bearing No. 32406 of August 1st, 1939, whereby civil action No. 852/939 has been instituted, the Great Municipality of the Capital has brought a suit against the Company of Sofia and Bulgaria for the sum of 82,380,577.08 leva, the particulars of the claim being as follows:

The Regional Court of Sofia is prayed to adjudge that the Electricity Company of Sofia and Bulgaria must pay to the Great Municipality of the Capital:

(a) The excise duty irregularly collected from July 1st, 1925, to April 1st, 1937, amounting to a total of	66,754,344.15
(b) Sums irregularly collected for electric current consumed during the period January 1st, 1936, to April 1st, 1936	960,740.93
(c) Sums irregularly collected for electric current consumed during the period April 1st, 1936, to April 1st, 1938	6,483,762.00
(d) (Legal) Interest at 8 % on the sums set out under heads <i>a</i> , <i>b</i> and <i>c</i> from March 16th, 1938, to the date of institution of proceedings	8,161,730.00
Total, leva	82,360,757.08

(e) Interest at 8 % on the sum claimed, namely 82,360,577.07 leva, from this date until final payment has been made.

(f) Costs.

In support of its claim, the Great Municipality of the Capital has produced copies of the judgment rendered by the Court of Appeal, No. 70 of March 27th, 1937, in civil action No. 38/937, and of the judgment rendered by the Supreme Court of Cassation, No. 177 of March 16th, 1938, in civil action No. 678/38 of the Second Civil Section.

Here follow the signatures of the President and Secretary accompanied by the seal of the Regional Court of Sofia, duly legalized by the Ministry of Justice and by the Ministry for Foreign Affairs and Public Worship.

Certified correct translation.

(Signed) P. IVANOFF.

Seen at the Royal Ministry for Foreign Affairs and Public Worship for the legalization of the above signature affixed by its Dragoman M. P. Ivanoff (No. 978).—Sofia, September 12th, 1939.—Secretary of the Consular Department: (Signed) [illegible].—Dragoman-Cashier: (Signed) [illegible].”

Whereas this action which has thus been brought as demandant by the Municipality of Sofia against the Company constitutes, according to the above-quoted statement made on July 27th, 1938, by the Agent for the Bulgarian Government himself, the

precise course to be adopted by the said Municipality in order to obtain payment of the sums claimed by it from the Company and thus to enable it to resort to measures of compulsion ;

Whereas according to Article 41, paragraph 1, of the Statute,

“The Court shall have the power to indicate, if it considers that circumstances so require, any provisional measures which ought to be taken to reserve the respective rights of either party” ;

And whereas, according to Article 61, paragraph 4, of the Rules,

“The Court may indicate interim measures of protection other than those proposed in the request.”

Whereas the above quoted provision of the Statute applies the principle universally accepted by international tribunals and likewise laid down in many conventions to which Bulgaria has been a party—to the effect that the parties to a case must abstain from any measure capable of exercising a prejudicial effect in regard to the execution of the decision to be given and, in general, not allow any step of any kind to be taken which might aggravate or extend the dispute ;

Whereas, in this case, present conditions and the successive postponements and resulting delays and, finally, the action as demandant above mentioned, justify in the view of the Court the indication of interim measures calculated to prevent, for the duration of the proceedings before the Court, the performance of acts likely to prejudice, for either of the Parties to the case or for the interests concerned, the respective rights which may result from the impending judgment ;

FOR THESE REASONS,

The Court,

indicates as an interim measure,

that pending the final judgment of the Court in the suit submitted by the Belgian Application on January 26th, 1938,

the State of Bulgaria should ensure that no step of any kind is taken capable of prejudicing the rights claimed by the Belgian Government or of aggravating or extending the dispute submitted to the Court.

The present Order has been drawn up in French, the Parties having agreed that the case should be conducted in that language.

Done at the Peace Palace, The Hague, this fifth day of December, one thousand nine hundred and thirty-nine, in four copies, one of which will be deposited in the archives of the Court and the others will be communicated to the Belgian Government, to the Bulgarian Government and to the Council of the League of Nations respectively.

(Signed) J. G. GUERRERO,

President.

(Signed) J. JORSTAD,

Deputy-Registrar.
